

The People in Modern Political Thought: An Outline History

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ABSTRACT

The people is a significant presence in the political thought of the modern era. Popular sovereignty is a key concept of modern political thinking. Yet the people itself, the possessor of that sovereignty, is given little attention in the history of modern political thought. This article sketches an outline history of how modern political thought has answered the question of how it is possible to conceive of the population of a nation as united into being a single corporate entity, such that the fact that a population comprises many individuals with many different preferences and points of view is no obstacle to describing it as having a single will and a capacity for single action. Hobbes is the point of departure, and the first half of the article describes responses to Hobbes on the part of, among others, Pufendorf, Locke, and Rousseau. It then turns to the conceptualisation of the revolutionary period and its aftermath, focusing in particular on liberalism's failure to develop a proper theory of the people. The article ends with Schmitt's critique of this failure, and with early twentieth-century liberalism's move to dispense with the people altogether.

KEYWORDS

People; multitude; popular sovereignty; Hobbes; Rousseau; Schmitt

1. Questions about the people

The people is a significant presence in the political thought of the modern era.¹ Popular sovereignty is, without doubt, 'a key concept of modern political thinking'.² Yet the people itself, the possessor of that sovereignty, is given little attention in the history of modern political thought. Attention has been given to the question of *who* the people has been taken to be: to the question, that is, of which parts of a population have been supposed to count as members of the people. At the start of the modern period, it has been shown, the people is distinguished principally from the *plebs*, the mass of the illiterate poor, and often includes the nobility. By the nineteenth century, on the other hand, it is common to think of the people as the working classes, different and distinct from both the middle classes and the upper classes.³ The article on *peuple* in the *Encyclopédie* (which argues that the people comprises only workers and labourers, not lawyers or artists or financiers) begins by noting that it is a collective noun 'difficult to define,

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because different ideas are formed of it in different places, in different times, and according to the nature of governments'.⁴ There has also been interest in the people conceived of, in a less strict sense, as the nation as a whole, and in the question of how one people or nation has been differentiated from another people or nation. Perhaps it is language that does this work, or culture, or religion, or possibly simply the occupancy of a particular geographical territory.⁵ The topic of this article is a further question, the question of how it is possible to conceive of the population of a nation – of *any* nation – as united into being a single corporate entity, such that the fact that a population comprises many individuals with many different preferences and points of view is no obstacle to describing it as having a single will and a capacity for single action.

In what follows I sketch an outline history of how modern political thought has answered the question of how it is possible for a nation or country to be both a plurality and something singular – both a *they* and an *it*. There are other questions to ask of the people in this sense of the word. We might, for instance, wonder how it stays the same single thing, or person, through the passage of time. And we might wonder in virtue of what it is that the people is claimed – or simply assumed – to be *sovereign*.⁶ It is, in fact, almost impossible to talk about the people without at the same time talking about its sovereignty. What I shall try to focus on, however, is the question of the possibility of unity: the question of how, to use sixteenth and seventeenth-century terminology, the people is to be differentiated from the multitude. My goal here is not to present new interpretations of the figures from the history of modern political thought, from Hobbes to Schmitt, who discuss this question. Rather, it is to show that the question is indeed one of their concerns, in addition to more familiar (and related) issues concerning, for example, representation, the distinction between sovereignty and government, and the nature and scope of individual liberty in the modern state. I aim to place their theories of the people in conversation with each other, as a first step towards an adequate account of the history of modern reflection on the concept of the people – such as could not possibly be undertaken in a single journal article. The politics of the present moment is loud with references to the people, especially as pitted against institutions of government which have supposedly usurped its authority, but all too often it is left unclear what the people is taken to be. My suggestion here will be, in effect, that this is not surprising, given the way that the liberal political thought of the nineteenth century abandons an earlier tradition of active inquiry into the conditions of the possibility of peoplehood.

2. From Hobbes to Rousseau

'[W]hat the word *people* means', Sir Robert Filmer observed in 1652, 'is not agreed upon'.⁷ In *The Elements of Law* Filmer's exact contemporary Hobbes had sought to make progress on the question by proposing what he presents as the first attempt at a clear distinction between the people on the one hand, and a crowd or multitude on the other.⁸ The word 'people', he says, has two meanings. In one sense, it signifies 'only a number of men, distinguished by the place of their habitation; as the people of England, or the people of France'. In this sense a people is 'no more, but the multitude of those particular persons that inhabit those regions, without consideration of any contracts or covenants amongst them, by which any one of them is obliged to the rest'. A people in this sense is a plurality of individuals in which no one is authorised to act or

speak for anyone else. Everyone acts and speaks for himself and only himself, so that, properly speaking, the act of a multitude is not one act at all, but as many actions as there are members of the multitude. In another sense, the word ‘people’ signifies ‘a person civil’. In *this* sense, the multitude of individual members is taken to be unified such that they have one will, and such that they speak and act as if they were a single person.

This is possible, Hobbes says, in so far as there is one man, or one group of men (‘one council’), ‘in the will whereof is included the will of every one in particular’. It is possible, in other words, in so far as one individual, or a small group of individuals, has the right to act for everyone else, such that his or their will and word can be taken to the will and word of the whole community.⁹ Given the natural liberty and equality of all human beings, this right can only be the product of consent. ‘When many wills are involved or included in the will of one more consenting’, Hobbes says, ‘... then is that involving of many wills in one or more called union’.¹⁰ A people, then, is an artificial construct. Those who live in England or France constitute *the people*, rather than a mere multitude, when they have entered into an agreement with each other, the result of which is that someone has been given the capacity to act and speak for them. Another word for such a union and concourse of wills, Hobbes adds, is *commonwealth* or *city*.

Filmer’s puzzlement as to what the word ‘people’ means was occasioned by John Milton’s equivocations between the people as *populus universus*, the people as *pars major*, and the people as *pars potior et sanior*.¹¹ In the end, Filmer notes, Milton ‘will not allow the major part of the Representors to be the people, but the *sounder and better part only of them*’.¹² The context for Hobbes’s discussion of people and multitude in the *Elements* may well have been an earlier attempt on the part of post-Reformation resistance theorists to limit membership of the people to the sounder and better part of the population.¹³ The worry was that the idea of a right of resistance possessed by the people would be discredited by the fact that the people was an anarchic horde with no principle of organisation. The people could easily be pictured as not knowing its own mind, as having a plurality of voices and opinions – and, of course, as dominated by the huge majority with no education, no property, and nothing at stake in the preservation of law and order. It was important, then, for defenders of a right of resistance, whether Protestant or Catholic, to make it clear that the people was something different from the chaotic mass of the population as a whole. ‘When we speak of the people collectively,’ claims the author of *Vindiciae Contra Tyrannos*, ‘we mean those who receive authority from the people, that is, the magistrates below the king who have been elected by the people or established in some other way. These take the place of the people assembled as a whole and are ephors to kings and associates in their rule. And we also mean the assembly of the Estates, which are nothing less than the epitome of the kingdom to which all public matters are referred’.¹⁴ It is this organised hierarchy which speaks and decide for the people, which *is* the people when the people is conceived of as a single person, and which, as such, determines when and how the right of resistance is to be exercised.

Hobbes’s purpose in his clarification of the meaning of the word ‘people’ was diametrically opposed to that of the resistance theorists of the sixteenth century. This is made clear when he returns to the distinction between people and multitude in *De Cive*. If a multitude only becomes a people when everyone consents to someone’s right to act on

their behalf, then the people does not exist prior to that act of consent and submission. It is individuals who contract with other in order to bring the commonwealth and its powers into existence. The commonwealth is not created by the people. On the contrary. '[P]rior to the formation of a commonwealth', Hobbes says in *De Cive*, 'a *people* does not exist, since it was not then a person but a crowd of individual persons.'¹⁵ This means that if the powers of the commonwealth are misused, then that is in no way a violation of an agreement with the people. It makes no sense to think of the people as having a moral claim against the commonwealth because, considered as a civil person with a single will, the *people is the commonwealth* and the *commonwealth is the people*. An act of resistance by the people could only be, impossibly, an act of the commonwealth against itself. An action against the commonwealth can, in fact, only be an action of individuals or a faction, and so cannot have the putative moral legitimacy of an action on the part of the people. 'Ordinary people and others who do not notice this point,' Hobbes warns, 'always speak of a large number of men as the people, i.e. as the commonwealth; they speak of the commonwealth as having rebelled against the king (which is impossible) and of the people wanting, or not wanting, what malcontent and murmuring subjects want or do not want; under this label of the people, they are setting citizens against the commonwealth, i.e. the crowd against the people.'¹⁶ This is why, in both the *Elements of Law* and *De Cive* – but not, curiously, in *Leviathan* – a failure to distinguish properly between people and multitude is one of the mistakes in political thinking which risks the commonwealth's dissolution.

Hobbes makes it obvious in *De Cive* that what he is doing in his theory of the people is drawing the radical sting from the notion of popular sovereignty. The consequence of his argument is that it does not matter what is the commonwealth's form of government. A commonwealth might achieve singleness of will in the supremacy of a council, democratic or aristocratic, or in the supremacy of a king. In the former case, the council is the people. In the latter case, the king is the people. 'In every commonwealth', Hobbes says, extraordinarily, 'the people reigns'.¹⁷ There may have been a continental European context for Hobbes's first thoughts about the distinction between people and multitude, but the claim that the people could be embodied as well in the will of a king as in the will of a council was plainly a direct challenge to the English Parliamentary view of Commons and Lords together as, in Henry Parker's words, 'the very people it self artificially congregated'.¹⁸ The people, according to Parker, 'is not so properly the Author as the essence it selfe of Parliaments'.¹⁹

This was an old idea. A hundred years earlier, Thomas Smith had asserted that Parliament 'representeth and hath the power of the whole realme both the head and the bodie', on the grounds that 'everie Englishman is entended to bee there present, either in person or by procuration and attornies'. The result was that 'the consent of the Parliament is taken to be everie mans consent'.²⁰ It was representation in Parliament that turned the people in Hobbes's first sense of the word into a people in his second sense, that is, into a civil person with a single mind and will. Representation was not, of course, secured by every member of the commonwealth having a vote. Instead it was secured by the fact that the interests of the populace were shared – and best understood and articulated – by those who sat in the Commons and the Lords.²¹ Hobbes's account of union, especially as reformatted in *Leviathan*, is intended to show that if the issue is representation, then a king might represent the nation just as effectively, if not more

effectively, than an elected legislative body. Hobbes shared with his opponents in the English parliamentary tradition the idea that the multitude exists as a people only insofar as it is represented, and spoken and acted for. The deeper question was what, exactly, representation amounted to.²²

Hobbes's way of differentiating between people and multitude made only an indirect mark on the political thought of the seventeenth and eighteenth centuries.²³ In the first instance, it is mentioned only by those who reject it. 'Hobbes's principle is very false', Montesquieu says in one of his *pensées*,

namely that the people having authorized the prince, the actions of the prince are the actions of the people, so that the people cannot complain about the prince nor demand that he give any account for his actions because the people cannot complain about the people.²⁴

Pufendorf criticises Hobbes in the same spirit in *Of the Law of Nature and Nations*.²⁵

It is true, Pufendorf says, that a sharp distinction is to be made between a multitude and a unified people: 'A *People* or a State makes but one Person, having one Will, and performing only one and the same Action. Neither of which can be said of the *Multitude* of Subjects, opposed to the Prince or Sovereign Council'.²⁶ As Hobbes had argued, the natural state of human beings is multitudinousness. The people is an artificial creation. 'Before the settlement of the state,' Pufendorf says, 'many men are not indeed a people, that is, a democratical community'. But Hobbes was wrong to collapse the people into the will of the sovereign. There is a distinction to be made between the people as a single corporate body on the one hand, and the sovereign prince or council on the other. While Hobbes was right to argue that what turns the multitude into the compound person that is the people is a covenant, the immediate product of that covenant is not subjection to the will of a prince or council. It is, instead, to use the words of Pufendorf that I've just quoted, 'a democratical community'. The first covenant is an explicit agreement on the part of everyone to accept majority voting as a decision procedure. Then, and only then, is there the singularity of will which is characteristic of peoplehood. There is no natural authority to majority rule. Someone *might* covenant into the political community in a conditional way, agreeing to abide by the decisions of the majority only so long as the judgment of the majority conforms with his own private judgment. Hobbes had claimed in *De Cive* that 'it is not a natural rule, that the consent of the majority should be taken for the consent of all ... Rather, the rule has its origin in civil institution'.²⁷ In Pufendorf's own words,

The greater part draws the less only in Bodies already constituted, not in those which are still to be established ... [T]he Prerogative of the Majority, in a settled Council, to oblige the rest, is really owing to Human Compact and Institution, not to Nature.²⁸

An agreement to accept majority voting as the community's decision procedure is not, however, according to Pufendorf sufficient to create a people in the full sense of the word. The union achieved by such a covenant is unstable because even where someone has bound himself to respect the decision of the majority, a majority by itself has no power to compel him to do so. A second covenant is needed in order to give the state its 'final completion and perfection'. This second covenant is consent to the rule of a particular sovereign prince. An effective wielder of coercive power is necessary in order to prevent the people from fracturing under stress and falling back into a condition of multitudinousness.

The thought here seems to be that the people has degrees of unity. There is the relatively loose unity produced by the first covenant, and a more perfect unity created by the second. Pufendorf distinguishes between unity *by compact* and unity *by sovereignty*. The latter is a stronger tie than the former, for ‘they who are bound to each other under the same Government, do not continue equal to the Government it self’. Where there is a power of punishment,

all Persons lie under a far greater Necessity to remain obedient, than if they were united by Compact only; which could not take away the Equality of the Members, or their Right of administring their private Affairs, according to their own Judgment.²⁹

So, on Pufendorf’s view, the people is different and distinct from the sovereign, in the sense that it has a principle of unity that is prior to the institution of government – but the people is also dependent on the sovereign for the reinforcement and preservation of its unity. As elsewhere in Pufendorf’s thought, we see here a complexity that makes it difficult to call him straightforwardly either an opponent of Hobbes or a disciple.³⁰

It is possible – even likely perhaps – that Pufendorf was an influence on Locke’s account of the beginning of political societies in Chapter Eight of the second *Treatise of Government*.³¹ Locke dispenses with Pufendorf’s second covenant, and replaces it with a relationship between people and government spelled out in the legal language of trust. This is a crucial part of his claim, as anti-Pufendorfian as it is anti-Hobbesian, that no government created by human beings could possibly be an absolute government. Locke does not use the language of multitude and people, but he does talk, albeit briefly, of the transition through consent and compact from a disunited and inevitably fractious state of nature to the establishment of a community which is ‘one body, with a power to act as one body’. As in Pufendorf, what gives this original community the capacity to act as one body is the right of the majority ‘to act and conclude the rest’:

For when any number of Men have, by the consent of every individual, made a *Community*, they have thereby made that *Community* one Body, with a Power to Act as one Body, which is only by the will and determination of the *majority*.³²

An individual’s consent to the founding compact ‘would signifie nothing, and be no Compact, if he be left free, and under no other ties, than he was in before in the State of Nature’.³³ The crucial thing, as Locke says, is that the judgment of the majority be accepted, not just as decisive, but as the judgment of the whole community. Then even a society divided into two, into majority and minority factions, can be said to have a single will.

Locke seems confident that reason alone is, or should be, sufficient to motivate individuals always to accept the majority decision as their will.³⁴ Sovereign power is not needed to compel everyone to abide by the results of votes conducted on majoritarian principles. When the Lockean people decides to resist tyranny, presumably it does so by majority vote, and presumably it decides by majority vote what form resistance will take. Locke says nothing at all, however, about how such decisions might be taken in the fraught circumstances of a dissolution of government. He is sure, and says so in the Preface to the *Two Treatises*, that William of Orange owes his throne to an action on the part of the English people – even while, as Locke well knew, a substantial part of the population had either opposed the Glorious Revolution or done nothing to support it. Locke has no properly worked out theory of the people to support his

commonsensical confidence that the people can be thought of as a unified corporate entity different and distinct from the prince or chief magistrate.³⁵ Rousseau too rejected the Hobbesian picture of the people as existing only in the will of a king or aristocratic council. But his theory of the people is not in the slightest bit commonsensical. A set of demanding conditions needs to be met, he argues, in order for there to be something deserving of the name 'the people'.³⁶

Like Locke, in *Of the Social Contract* Rousseau replaced Pufendorf's two-stage social contract with a single agreement sufficient, to use Rousseau's version of the distinction between multitude and people, to turn an 'aggregation' into an 'association'.³⁷ 'People' is the collective name for the members of this association, while each member calls himself a 'citizen' insofar as he participates in the sovereign authority of the state, and a 'subject' insofar as he is subject to that sovereign authority.³⁸ The Rousseauian people is united by singleness of will. It is not putting it too strongly to say that the Rousseauian people is an act of will, a united body brought into existence and sustained in existence by a continuous act of collective self-assertion.³⁹ Voluntarism is as pronounced in Rousseau's political thought as it is in Pufendorf's. On the other hand, Rousseau contradicts Pufendorf when he asserts that the people is necessarily sovereign, such that it is impossible for the people to alienate its sovereignty, for example to a king who assumes the tasks inherent in sovereignty on the people's behalf. Volition is not something that can be done *for* someone else. The people must will for itself in order to be a people, and a citizen must will for himself in order to be a citizen. What it means for a citizen to will for himself is that he affirm the general will. Indeed, an individual is a citizen, a member of the people, only to the extent that he identifies his will with the general will.⁴⁰

This line of thought enables Rousseau to explain how a people remains single and undivided even while it makes its decisions by majority voting. A vote of the people is a vote about what the general will is, not an expression of individual preferences. Those in the minority, Rousseau says, can be understood simply to have been mistaken about the content of the general will. The general will is, by definition, their will just as much as it is the will of those in the majority – even if they are not fully aware of the fact. Rousseau doubles down on this by adding that if, as a member of the minority, my will had prevailed, then 'I would have done something other than what I had willed, and I would not have been free'.⁴¹

Having made this apparently paradoxical claim – which is of course grist to the mill of those who, like Isaiah Berlin, see him as an enemy of liberty in the true, liberal meaning of the word⁴² – Rousseau immediately acknowledges that his claim 'presupposes ... that all the characteristics of the general will are still in the majority'.⁴³ He does not explain what he means by this, but I take him to be saying that the claim that the citizen's will is always and necessarily the general will depends on the existence of a particular moral disposition in the majority, and, indeed, in the association at large. It needs to be the case that everyone *does* vote according to their sense of what is in the common interest, and not according to their personal or factional preferences. This, in turn, depends upon the active and successful cultivation of an ethic of citizenship in every member of the people. It depends, too, on a *practice* of citizenship, meaning, first and foremost, a willingness on the part of all citizens to gather together in public in order to vote as members of the assembled people. The sovereign can only act, Rousseau says, it can only *be* a sovereign, when the people is assembled. Peoplehood, in other words, is not simply the product of a

contract. It is, so to speak, an ongoing project – again, a continuous assertion and reassertion of will.

What makes a people, then, is not merely a one-time agreement to a set of shared laws. ‘Yesterday’s law’, Rousseau says, ‘does not obligate today’.⁴⁴ What makes a people is the ongoing *exercise* of legislative power. Peoplehood disintegrates when active citizenship degenerates into selfishness and a prioritisation of the private over the public. It is both cause and effect of the disintegration of peoplehood when the distinction between sovereignty and government is blurred, such that government is allowed to make fundamental law on the people’s behalf. When that happens, the truth is that, properly speaking, the people no longer exists. It is a clear implication of Rousseau’s position that in the countries of modern Europe, where populations are subjected to the rule of absolute princes and kings, there is no such thing as peoplehood. ‘If ... the people promises simply to obey’, he insists, ‘by that very act it dissolves itself and loses what makes it a people; the moment a master exists, there is no longer a Sovereign, and from that moment the body politic has ceased to exist’.⁴⁵ In *Emile* Rousseau declares that the words ‘fatherland’ and ‘citizen’ – and by implication also ‘people’ – should be ‘effaced from modern languages’.⁴⁶

3. From the *federalist* to Schmitt

Needless to say, the words ‘fatherland’, ‘citizen’, and ‘people’ remained in use. In English, a less demanding sense of the word ‘people’ prevailed, along the lines of Samuel Johnson’s definition of ‘people’ as, in one of its meanings, ‘A nation; those who compose a community’.⁴⁷ This definition ignores the distinction which Hobbes had sought to enforce – and which I mentioned in the introduction to this paper – between the people conceived of as ‘a number of men, distinguished by their place of habitation’ and the people conceived of as a civil person, ‘in the will whereof is included and involved the will of everyone in particular’. We see the same inattention to Hobbes’s distinction in texts which assert the sovereignty of the people, but which do not attempt to provide a *theory* of the people, an account of the union and singularity of will which might distinguish a people from a multitude. In *Federalist* 2, for example, John Jay announces that

Providence has been pleased to give this one connected country to one united people – a people descended from the same ancestors, speaking the same language, professing the same religion, attached to the same principles of government, very similar in their manners and customs, and who, by their joint counsels, arms, and efforts, fighting side by side throughout a long and bloody war, have nobly established their general liberty and independence.⁴⁸

At the same time, the authors of *The Federalist* insist on the diversity of the American people, and argue – in Number 10 – that the country’s ‘great variety of parties and interests’ makes it ‘less probable that a majority of the whole will have a common motive to invade the rights of other citizens’.⁴⁹ Paine, writing in America in the 1780s, says that ‘A nation, in a collective sense, comprehends all the individuals, of whatever age, from just born to just dying’. He also says that ‘A nation, though continually existing, is continually in a state of renewal and succession. It is never stationary. Every day it produces new births, carries minors forward to maturity, and old persons from the stage. In this ever-running flood of generations, there is no part superior in authority to another.’⁵⁰

The problem with this looser way of thinking about peoplehood is that if, as Paine puts it, there is no part of the people superior to another, then it is not clear why the will of one part of the people should prevail when there is disagreement and a decision to be made. The obvious thought is that the will of the larger number should win out. But what is the source of the authority of the majority? Is it merely the superior strength resultant from size? If so, why should a minority acknowledge a *right* on the part of the majority to determine how things go in the nation? In virtue of what should a minority recognise the will of the majority as the will of the people as a whole? Is there, in fact, anything that could be said to be will of the people as a whole? If not, does such a thing as the people really exist?

These questions were posed with particular sharpness by Burke in *An Appeal from the New to the Old Whigs*. Burke notes that it had been claimed that, in circumstances of the dissolution of society as a whole, such as had obtained in France after 1789, the majority could rightfully think of itself as possessing the sovereign power of the people as a whole. But, Burke argues, the idea that a majority decision can be taken as a decision of the whole is a fiction of positive law. In fact, it is 'one of most violent fictions of positive law, that ever has been or can be made on principles of artificial corporation'.⁵¹ It depends on two assumptions, first that there has been an original and unanimous act of incorporation, and second that there has been an unanimous agreement that the act of a majority, even a majority of one, shall pass with everyone as an act of the whole. Where everyone has had a say and where the vote was a close one, Burke points out, it is very likely that the defeated party, 'exasperated and soured by the previous contention', will continue to see the victors as their enemy. Majoritarianism is far from being a natural principle of human association. This being so, it remains a question how a divided nation attains the singleness of a people.

'When the supreme authority of the people is in question', Burke says in the *Appeal*, 'before we attempt to extend or confine it, we ought to fix in our minds, with some degree of distinctness, an idea of what it is we mean when we say the PEOPLE'.⁵² Sieyès agreed with Burke that in a situation where society and state had dissolved, no such thing as a people, whether sovereign or not, could be said to exist. A people was not the natural thing that Paine claimed it was. The population, as Sieyès conceives of it, is a conglomeration of interests, some shared, many partial and mutually exclusive. It is not, properly speaking, a single thing at all. Sieyès took there still to be a strongly feudal character to European society, divided as it was into local communities dominated by the church and landed families. 'A community has to have a common will', he says in *What is the Third Estate?*: 'Without this *unity* of will, it would not be able to make itself a willing and acting whole'.⁵³ The nation as a single community, this is to say, has to be constructed by the votes of individuals who have liberated themselves from their local loyalties. It is the function of the representative body created by those votes to show the nation to itself as a unity.⁵⁴

'Only representation is the united people,' Sieyès asserts, 'since the ensemble of parties to the association cannot achieve a unity in any other way.' He continues:

The integrity of the nation is not anterior to the will of the reunited people, which is only available through its representation. Unity begins in it. Nothing, therefore, is above representation, and it is the only organized body. Dispersed, the people is not an organized body, and has neither a singular will nor a singular mind – indeed, nothing singular at all.⁵⁵

The people's *pouvoir constituant* exists in and is exercised by not the plural and dispersed totality, but in the reasoned deliberations of the representative assembly, the reformed Estates-General, which will vote by head and not by order. A vote by head will be conducted on a strictly majoritarian basis. But only in the context of the already constituted assembly is it reasonable to affirm 'the self-evident principle that the common will is the opinion of the majority, not the minority'.⁵⁶

In Kant also there is emphasis on the state as the means of unification whereby it becomes possible to postulate a people as a site of collective agency. Sounding a distinctly Hobbesian note, Kant says in *The Doctrine of Right* that

since a people must be regarded as already united under a general legislative will in order to judge with rightful force about the supreme authority, it cannot and may not judge otherwise than as the present head of state wills it to.⁵⁷

This helps Kant on the way to his rejection of a popular right of resistance, via the intermediate conclusion that 'the head of state has only rights against his subjects, and no duties (that he can be coerced to fulfil)'.⁵⁸

Here Hegel agreed with Kant. Hegel argues in *The Philosophy of Right* that

[w]ithout its monarch and that *articulation* of the whole which is necessarily and immediately associated with monarchy, the people is a formless mass. ... It is only when moments ... which refer to an organization, to political life, emerge in a people that it ceases to be an indeterminate abstraction which the purely general idea of the *people* denotes.⁵⁹

In the *Encyclopedia* he takes the same position. 'The aggregate of private persons is often spoken of as 'the people'', he says there:

but as such an aggregate it is *vulgus*, not *populus*: and in this regard the principal aim of the state should be that the people should not exist or come to power and action *as such an aggregate*. That condition of the people is a condition of lawlessness, unethicity, brutishness: in it the people is only a shapeless, wild, blind force.

He goes on to affirm that 'The final aspect of the state is that it is the immediate actuality of an *individual* and *naturally* determined people'.⁶⁰ The reactionary monarchist Joseph de Maistre expresses himself in a similar way when he says that 'It is as impossible to imagine a human society, a people, without a sovereign, as a hive of bees without a queen: for, by virtue of the eternal laws of nature, a swarm of bees exists in this way or it does not exist at all. Society and sovereignty are thus born together ... The word *people* is a relative term that has no meaning divorced from the idea of sovereignty: for the idea of a *people* involves that of an aggregation around a common centre, and without sovereignty there can be no political unity or cohesion'.⁶¹

For Sieyès, Kant, and Hegel, the goal was an understanding of the people and its sovereignty which did not have potentially dangerous and destabilizing implications. The principle of popular sovereignty could not be denied. But, as Hobbes had shown, its political significance could be minimized. The emergent doctrine of political liberalism sought to restrict the consequences of popular sovereignty in a different way, by means of another approach to the definition of 'the people'. A key move in this direction was made by Constant in *The Principles of Politics* when he interpreted the doctrine of popular sovereignty as, in the first instance, a *negative* claim, to the effect that no individual or group in society has supreme authority over any other individual or group.⁶²

To say that *the people* is sovereign, Constant claims, is to say that *everyone* is sovereign, and that is to say that *no one* – no one in particular – is sovereign.⁶³ Rousseau had dangerously misunderstood his own central principle. Political legitimacy does not depend on the transfer to the people of the sovereignty previously wielded by kings. The inevitable and fatal consequence of such a transfer is that someone will usurp the people's absolute sovereignty by claiming that they could be trusted to exercise that sovereignty on the people's behalf. Instead, the goal of a politics which genuinely embodies popular sovereignty is to make such a usurpation of authority impossible, through constitutional principles which effectively circumscribe governmental authority. For the important question as regards freedom is not who has ultimate power, but how power is limited.

Constant's scepticism about the very idea of absolute power entailed a scepticism about the right of majorities to impose their will on minorities. 'The prerogative of the majority is that of the strongest', he argues in *The Principles of Politics*, 'It is unjust'. However, he adds, 'It would be still more unjust if the will of the weakest were to prevail'.⁶⁴ Politics is about recognising internal conflict, and trying to resolve it through balance and compromise. There is no need, therefore, to imagine the people as having a single will which government is tasked with putting into practical effect. The people is recognised as divided and diverse, and the role of a good constitution is that of preventing any one faction from permanently dominating the rest.

In a chapter of Volume One of *Democracy in America* entitled 'Why it can be firmly stated that in the United States it is the people who govern', Tocqueville remarks that 'In the United States, as in any country ruled by the people, the majority governs in the name of the people'.⁶⁵ Later he says that

The concept of the right of the majority to govern society, based on enlightenment, was brought to the United States by its first inhabitants. This idea, which alone would be enough to create a free nation, has today passed into common usage and appears even in the slightest habits of life.⁶⁶

Majority voting had been an efficient decision procedure in the early New England township, and was sufficient to 'create a free nation' in the sense that it was premised on the idea of equality, such that no one's vote counted for more than one, and such that authority derived from numbers, not from inheritance. In the same period, Francis Lieber asserted that 'Giving unbounded power to the people means ... nothing less than giving unbounded power to a majority; for, as a matter of course, the majority must possess it, if the people have it at all.'⁶⁷ But in order to be a principle of union, and not of division, the majority principle needs to be more than an efficient decision procedure. It also needs to be more than a means, à la Condorcet's jury theorem, whereby a group of people can be relied upon to make the best possible joint judgment. There has to be some explanation of how it is that the will of the majority is *everyone's* will, the will of the people as a whole.

Liberalism makes a virtue out of not attempting such an explanation. It portrays the authority of the majority as residing in numbers alone. It divides the political community into majority and minority, and, famously, worries that the numerical power of the majority will constitute a form of tyranny just as dangerous to individual liberty as had been the absolute power of kings. As Mill puts it in *On Liberty*,

The will of the people ... practically means, the will of the most numerous or the most active *part* of the people; the majority, or those who succeed in making themselves accepted as the majority; the people, consequently, *may* desire to oppress a part of their number; and precautions are as much needed against this as against any other abuse of power.⁶⁸

Liberalism's political – and indeed moral – goal is, precisely, to provide a counterweight to the brute strength of the majority. The system of plural voting devised by Mill in *Considerations of Representative Government* is a case in point.

According to Mill, 'The idea of a rational democracy is, not that the people themselves govern, but that they have *security* for good government.' '[T]he best government', he continues, 'must be the government of the wisest, and these must always be a few. The people ought to be the masters, but they are masters who must employ servants more skilful than themselves'.⁶⁹ It is always worth noticing when 'the people' is used in the singular, as an 'it', and when it is used in the plural, as a 'they'. Mill's position, however, is not that the legitimacy of a government lies simply in its wisdom. Rather, what is necessary for legitimacy is that a government be an *image* of the nation as a whole, of the wise as well as of the uneducated masses – and that there are parliamentary procedures in place which allow the wisdom of the wise to guide debate and decision making.

This conception of democratic government went along with a pluralist view of the nation, according to which – contrary to the vision of Hobbes, Rousseau, and Sieyès – the nation is not made up merely of equal individual citizens, but also, and just as fundamentally, of different and distinct interest groups. 'What is a nation?' asked W. R. Greg in *The Edinburgh Review* in 1852. 'Not a mere aggregation of millions; not a homogenous mass of units', he replied, 'but a congress of ranks and classes'.⁷⁰ Again, there is no impulse on this view to conceive of the people as a unified entity, a civil person, with a single will. The people is an electorate which votes for members of parliament to represent the various ranks and classes – and which does no more than that. It is taken as a given, moreover, that elected members of the legislature are representatives, not delegates, and that they are under no obligation to pursue the concerns of those who voted them in. Between elections the people has no role in the political process. There is no moment, then, at which the population comes together as one in order to express its single sovereign will. Nineteenth-century liberalism, it would not be an exaggeration to say, has no *use* for a theory of the people. It might see itself as premised on the principle of popular sovereignty, but its people is a multitude.⁷¹

No one saw this more clearly than Schmitt. 'Democracy today', he says in the essay 'The Liberal Rule of Law', 'is democracy without a *demos*, without a people'.⁷² Under liberalism, Schmitt claims, 'all the consequences of the democratic in its political sense are prevented'.⁷³ Where, he asks, does the people appear in the quintessentially liberal constitution of the Weimar Republic? Weimar politics, he argues in *The Crisis of Parliamentary Democracy*, is just one more version of the 'parliamentarism' which may have suited England and France in the early nineteenth century, but which does not fit the mass democracy of the early twentieth. The Weimar constitution is 'only a poor facade concealing the dominance of parties and economic interests'.⁷⁴ The real decisions are made behind closed doors, in committees, board rooms, and meetings of shop stewards. The people, by contrast, is 'a concept in public law': 'The people exists only in the sphere of publicity'.⁷⁵ Rousseau was right in his belief that – as Schmitt puts it – '[t]he people is only the people assembled'.⁷⁶

Rousseau is, according to Schmitt, the philosopher of modern democracy. In order for this to be made clear, though, the device of a social contract has to be put to one side. The heart of Rousseau's thought is the idea of the people as a homogeneity: that is, as precisely *not* liberalism's confused and conflicted mass of different classes and religions and ethnicities. 'Democracy', Schmitt declares, 'requires ... first homogeneity and second – if the need arises – elimination or eradication of heterogeneity'.⁷⁷ Homogeneity resides in the sharing of something substantial – as contrasted with the empty universalism of liberalism's idea of human equality. Substantial equality might be found in 'certain physical and moral qualities', or in membership of a single nation. More fundamental still to democracy is the concept of *identity*. In the first place, the identity in question is the identity of the governed and the government, and the identity of the law and the people's will. It is 'the identity of the people with their representatives in parliament' and 'the identity of the state and the current voting population'. It is, by the same token, the identity of the will of the outvoted minority with the will of the majority. Rousseau's argument that a voter in a minority has made a mistake about his own will is, Schmitt says, 'fundamental for democratic thought'.⁷⁸

It is tempting to understand Schmitt's talk of homogeneity and identity in purely ethno-nationalist terms, as if he was returning to something like Fichte's understanding of the people as constituted by a shared language and culture. But it is also possible to read Schmitt's emphasis on the 'publicity' of the people as another version of the Hobbesian conception of the people as an essentially political artefact. In the sphere of publicity, individuals come together first and foremost as *citizens*, as equals under the law who understand themselves as a single body by contrasting their status with that of unequals who do not come under the purview of the law.⁷⁹ The will of the citizen, for Schmitt as for Rousseau, is by definition a general will. It is the will of the community as a whole as it concerns itself with matters which bear on the interests of the community as a whole. But it cannot be obvious to the citizen himself exactly what the general will is. When the body of citizens gathers together, it is still a disorganised mass, a Hobbesian multitude, and all it can do is give voice to a majoritarian 'yes' or 'no'. It finds the content of its will in the programme of a leader to whom the majority says 'yes', whom the majority acclaims as its concrete realisation and embodiment. Schmitt answered his own question about the democratic status of the Weimar constitution by claiming that it had a place for the will of the people only in the office of the *Reichspräsident*. The ways in which the constitution limited the executive power of the president were so many restraints on the people itself. By 1935, however, Schmitt was able to claim that 'the German people has ... become the German people again ... The state – rid of parliamentary sovereignty, independent judiciary, a plurality of parties, the rule of law – is now the tool of the people's strength and unity'.⁸⁰

4. Liberalism after Schmitt

Schmitt posed a challenge to liberalism's belief that it can combine itself with democracy properly so called. In what sense, Schmitt asks, can *liberal* democracy really be the rule of the people? Does liberalism even have a concept of the people as a Hobbesian civil person, rather than as merely the divided mass of the electorate? To some liberals in the early twentieth century it was obvious that the answer was that it did not, and that

this needed to made clear and explicit in order to distinguish liberalism, not only from National Socialism, but also from Soviet Communism. Thus Hans Kelsen emphasised the fictional nature of ‘the unity that appears under name “people”’. The people, he insists in *The Essence and Value of Democracy*, ‘is by no means, as is naively believed, an embodiment, a conglomerate, as it were, of human beings’; rather, it is ‘merely a system of acts of single human beings determined by the state’s legal order’. Kelsen saw a democracy as, necessarily, a ‘party state’, and saw the compromises made by parties in parliament as ‘releasing for the first time social forces that somehow can be described as “the people”’.⁸¹

In America in the same period Walter Lippmann went further still towards disconnecting democracy entirely from the idea of the supremacy, whether direct or (through representation) indirect, of the will of the people. What had traditionally been called the people was merely an electorate, and the function of the electorate was to put in place an elite group of experts to make the decisions which voters were intellectually unequipped to make for themselves. ‘Instead of describing government as an expression of the people’s will,’ Lippmann remarks in *The Phantom Public*, ‘it would seem better to say that government consists of a body of officials, some elected, some appointed, who handle professionally, and in the first instance, problems which come to public opinion spasmodically and on appeal’.⁸² Democracy, according to Schumpeter twenty years later, is ‘the rule of the politician’.⁸³ In this thoroughly disenchanted conception of democracy, there is no idea whatsoever of a general will embodied in the actions of the state, and no idea of the will of the majority as somehow the will of all. ‘Evidently,’ Schumpeter says, ‘the will of the majority is the will of the majority and not the will of “the people”’. The latter is a mosaic that the former completely fails to represent’.⁸⁴ Schumpeter’s deflationary account of democracy was, in Alan Ryan’s words, ‘to all intents and purposes the common sense of political science for the subsequent seventy years’.⁸⁵ The recent but widespread success of populist politicians would seem to be reason to wonder whether liberalism’s inability to articulate itself in terms of the people and the people’s will might not, in the end, be a fatal weakness.⁸⁶

Notes

1. Which is not to say, of course, that it is absent from pre-modern political thought: see, e.g. Lee, *Popular Sovereignty in Early Modern Constitutional Thought*, chs. 1–3; Bourke and Skinner, eds., *Popular Sovereignty in Historical Perspective*, chs. 1–4. Cicero gives a theory of the people, in the sense in which I use the term, in Book I of *De Republica*. For discussion, see, e.g. Paulson, *Cicero and the People’s Will*.
2. Bourke, “Introduction”, 1.
3. See Boas, *Vox Populi*. See also Hayes, *The People and the Mob*, which focuses on the distinction drawn by both left and right in the nineteenth century and afterwards between the ‘people’ as the productive working majority and the ‘mob’ as the unproductive and marginal minority, and Gunn, ‘The Fourth Estate’, which shows that while British Whig political thought attributed the origin of government to the people, it was ‘judiciously imprecise about the nature of the entity’.
4. ‘Peuple’, *Encyclopédie*, ed. Pons, vol. ii, 262 [‘nom collectif difficile à définir, parce qu’on s’en forme des idées différentes dans les divers lieux, dans les divers temps, et selon la nature des gouvernements’]. Argument continues in France for at least a hundred years about who counts as members of the people, from Coyer, *Dissertation sur la Nature du Peuple*, to Michelet, *Le Peuple*.

5. See Canovan, *The People*.
6. See, e.g. Olson, *Imagined Sovereignties*, which 'focus[es] specifically on the taken-for-grantedness of our ideas of popular power and moving that phenomenon to center stage as an object of investigation and problematization' (16).
7. Filmer, *Patriarcha and Other Writings*, 198.
8. For an account Hobbes's treatment of people and multitude, see Chanteur, "Note sur les Notions de 'Peuple' et de 'Multitude' chez Hobbes". For a more recent discussion, which contrasts Hobbes's position in the *Elements of Law* and *De Cive* with his position in *Leviathan*, see Field, *Potentia*, chs. 2-5.
9. Hobbes, *Elements of Law*, 124 [XXI.11].
10. Ibid., 72 [XII.8].
11. On Milton's conception of the people, see Hammond, *Milton and the People*.
12. Filmer, *Patriarcha and Other Writings*, 199.
13. How the unity of the people was conceived of by early modern theorists of resistance is a recurrent theme in Mortimer, *Reformation, Resistance, and Reason of State*.
14. Franklin, *Constitutionalism and Resistance in the Sixteenth Century*, 149.
15. Hobbes, *On the Citizen*, 95 [VII.7].
16. Ibid., 137 [XII.8].
17. Ibid., 137 [XII.8].
18. Parker, *Ius Populi*, 18.
19. Parker, *Observations Upon Some of His Majesties late Answers and Expressions*, 5.
20. Smith, *De Republica Anglorum*, 79.
21. See Cromartie, "Parliamentary Sovereignty, Popular Sovereignty".
22. See Skinner, "Hobbes on Political Representation". There is, of course, a large literature on Hobbes's theory of representation. Skinner's treatment is distinctive in the way it relates Hobbes to longstanding traditions of thought out of which the tracts and pamphlets of the 1640s arose. Morgan suggests that in fact, in England in the mid-seventeenth century 'representatives invented the sovereignty of the people in order to claim it for themselves – in order to justify their own resistance, not the resistance of their constituents singly or collectively, to a formerly sovereign king' (*Inventing the People*, 50). Morgan's account neglects the role played by the idea of popular sovereignty in the sixteenth century and earlier seventeenth century.
23. The issue goes unmentioned in Parkin, *Taming the Leviathan*.
24. Montesquieu, *My Thoughts*, 93–94 [§224].
25. On Pufendorf's theory of the people, see Harris, 'The Multitude, the People, and Popular Sovereignty'. The place of the people in Pufendorf's political thought taken as a whole is a theme of Hunter and Haakonssen, 'Pacts, Sovereignty and Forms of Government'. See also Holland, *The Moral Person of the State*.
26. Pufendorf, *Of the Law of Nature and Nations*, 518 [VII.ii.14].
27. Hobbes, *On the Citizen*, 89 [VI.20].
28. Pufendorf, *Of Law of Nature and Nations*, 555 [VII.v.20].
29. Ibid., 535–36 [VII.iv.9].
30. Here I allude to Palladini, *Samuel Pufendorf Disciple of Hobbes*. For an interpretation which foregrounds differences between Hobbes and Pufendorf, see Saastamoinen, *The Morality of the Fallen Man*.
31. On Locke's account of peoplehood in relation to Pufendorf, see Harris, 'The Multitude, the People, and Popular Sovereignty'.
32. Locke, *Two Treatises of Government*, 349 [II, §96].
33. Ibid., 350 [II, §97].
34. On Locke on the authority of the majority, see Kendall, *John Locke and the Doctrine of Majority Rule*, and also, for a more nuanced account, Dawson, 'Liberty before Licence in Locke', esp. 134.
35. For a different view, see Franklin, *John Locke and the Theory of Sovereignty*.

36. On Rousseau's conception of the people as nation, see Boyd, 'On the Primacy of Peoplehood', and also Bouvier, "*Peuple et Nation dans le Contrat Social* de J.-J. Rousseau". There appears to be little work on the distinctive features of Rousseau's conception of the people as *une association*, though, for a recent discussion of the 'indeterminacy' of Rousseau's thought here, see Rousselière, *Sharing Freedom*, ch. 2.
37. Rousseau, *The Social Contract and Other Later Political Writings*, 48 [I.v.1].
38. Rousseau, *The Social Contract*, 51 [I.vi.10].
39. As one of this journal's referees pointed out, a fuller account of Rousseau's theory of the people would have to offer an interpretation of the paradoxical 'act by which a people is a people' referred to in *Social Contract* III.5, and also of the role played by the 'great Law-giver' in the institution of a people as described in *Social Contract* II.7. For an interesting recent account of the latter issue, see Daly, "Alchemising Peoplehood". A classic account of the former is Althusser, "Rousseau: The Social Contract".
40. There is, of course, a complex and long-running debate about how to understand Rousseau on the general will, and in particular about whether the general will is a normative, perhaps rational, principle that transcends the actual volitions of actual citizens, or whether it is a democratic principle that articulates what the citizenry as a whole wants (and takes itself to want). On the general question of the centrality of *will* to Rousseau's political thought, and of the difference between will and *reason*, see the work of Patrick Riley, e.g. 'Rousseau's General Will'. For a spirited recent defence of the democratic interpretation of the general will, see Tuck, *Active and Passive Citizens*. I agree with Tuck here, though I think that the question of how Rousseau justifies majoritarianism is more difficult than he acknowledges.
41. Rousseau, *The Social Contract*, 124 [IV.ii.8].
42. See Berlin, *Freedom and its Betrayal*, 27–49.
43. Rousseau, *The Social Contract*, 124 [IV.ii.9].
44. *Ibid.*, 109 [III.xi.4].
45. *Ibid.*, 57 [II.i.3].
46. Rousseau, *Emile*, 40.
47. Johnson, *A Dictionary of the English Language*, 'People'. Johnson's other definitions are: 'The vulgar', 'The commonality; not the princes or nobles', 'Persons of a particular class', and 'Men, or persons in general'.
48. Hamilton, Madison, and Jay, *The Federalist Papers*, 15.
49. Hamilton, Madison, and Jay, *The Federalist Papers*, 54. In 'The Ghostly Body Politic' Miller argues that the single sovereign people invoked at various points in *The Federalist* is entirely fictitious, needed only for the original ratification of the Constitution but irrelevant thereafter. The fictional nature of the American people in the discourse of the Revolution and its aftermath is a theme also of Morgan, *Inventing the People*.
50. Paine, *Rights of Man ... and Other Political Writings*, 391.
51. Burke, *Further Reflections on the Revolution in France*, 164–5.
52. Burke, *Further Reflections on the Revolution in France*, 163. Bourke ('Popular Sovereignty and Political Representation') describes Burke's positive view of the people and its sovereignty as entirely consonant with the Whig parliamentary tradition. He quotes Burke saying, in the 1792 'Speech on the Aliens Bill', that Britain 'knew of no nation as distinct from the representative powers'.
53. Sieyès, *Political Writings*, 134.
54. For a strongly Hobbesian reading of Sieyès on the people, see Sonenscher, 'Introduction' to Sieyès, *Political Writings*, esp. xviii–xix.
55. Quoted in Rosanvallon, *Democracy Past and Future*, 89.
56. Sieyès, *Political Writings*, 142.
57. Kant, *The Metaphysics of Morals*, 129 [Ak. 318]. As Meckstroth puts it, 'Kant's view, following Hobbes, is that the state was ... the necessary unifying institution that made possible the collective agency of the people, which could only act in and through it' ('Kant on History', 219).
58. Kant, *The Metaphysics of Morals*, 130 [Ak. 319].
59. Hegel, *Elements of the Philosophy of Right*, 319 [§279].

60. Hegel, *Philosophy of Mind*, 243, 244 [§§544, 545].
61. De Maistre, *Works*, 98–99.
62. On Duke's reading (in 'Constant's Liberal Theory of Popular Sovereignty'), 'Constant ... avoids the suggestion that the people is a community or a corporate subject which precedes the establishment of government' (852). See also Garsten, 'Representative Government and Popular Sovereignty'.
63. Constant is clearest about this in the 1815 version of *The Principles of Politics*, where he says that 'The universality of citizens is sovereign in the sense that no individual, no faction, no partial association can arrogate sovereignty to itself, unless it has been delegated to it': *Political Writings*, 176.
64. Constant, *Principles of Politics*, 32.
65. Tocqueville, *Democracy in America*, 202. For a recent study of Tocqueville on the people and its sovereignty, see Wilford, "Like a God on Earth".
66. Tocqueville, *Democracy in America*, 289.
67. Quoted in Tuck, *The Sleeping Sovereign*, 233.
68. Mill, *On Liberty and Other Essays*, 8.
69. Mill, 'De Tocqueville on Democracy in America [I]', 71, 72.
70. Quoted in Conti, "Plural Voting and Popular Government in Victorian Britain", 188.
71. A referee for this journal noted the importance of the pluralist challenge, from Gierke and Maitland to Figgis and Laski, to a Hobbesian dualism of state and/or people on the one hand and the individual and/or multitude on the other. On this view, the people might be thought of one corporate body among several making up the totality of the political community. A full account of theories of the people in the modern period would certainly need to take account of this line of thought, but I lack the space to do so here. On pluralism, see in the first instance Runciman, *Pluralism and the Personality of the State*.
72. Schmitt, 'The Liberal Rule of Law', 298.
73. *Ibid*, 296.
74. Schmitt, *The Crisis of Parliamentary Democracy*, 20.
75. *Ibid.*, 17.
76. Schmitt, 'The Liberal Rule of Law', 298.
77. Schmitt, *The Crisis of Parliamentary Democracy*, 9.
78. *Ibid.*, 25.
79. See Kelly, 'Carl Schmitt's Theory of Representation'. For a different, more organicist reading of Schmitt, see Orsi, 'On the Concept of *Volk* in Carl Schmitt'. In *Constitutional Theory* (§16) Schmitt distinguishes between two ways in which 'the people can achieve and hold the condition of political unity', one 'by virtue of a strong and conscious similarity, as a result of firm national boundaries, or due to some other reason', the other by way of representation (239).
80. Quoted in Stanton, 'Popular Sovereignty in the Age of Mass Democracy: Politics, Parliament and Parties in Weber, Kelsen, and Schmitt', 348.
81. Kelsen, *The Essence and Value of Democracy*, 90, 94.
82. Lipmann, *The Phantom Public*, 51–2, 62.
83. Schumpeter, *Capitalism, Socialism, and Democracy*, 285.
84. *Ibid.*, 272.
85. Ryan, *On Politics*, 960.
86. I am grateful to audiences in Helsinki and Glasgow for helpful discussion of earlier drafts of this article. Two references for this journal gave good advice, which I have done my best to benefit from. Thanks to Cesare Cuttica, Celine Spector and Tim Stuart-Battle for some very useful references.

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